

HUM 4747: Legal Issues and Cyber Law

Class 3: IP Laws, Enforcement & Common Violations

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Outline

- ① Bangladesh IP Legal Framework
- ② International IP Framework
- ③ IP Enforcement Mechanism
- ④ Enforcement Agencies & Courts
- ⑤ Common IP Violations & Case Studies
- ⑥ Challenges in IP Enforcement
- ⑦ Recommendations & Way Forward
- ⑧ Summary & Next Class

Last class we covered the 6 types of IP:

- 1 Copyright
- 2 Trademarks
- 3 Patents
- 4 Industrial Designs
- 5 Geographical Indications
- 6 Trade Secrets

Today's Focus

How are IP rights **enforced** in Bangladesh? What happens when they are **violated**? What are the **penalties**? And what are the **challenges**?

Complete IP Laws of Bangladesh

IP Type	Governing Law	Key Provisions
Patent	Bangladesh Patents Act, 2023	20 years protection
Industrial Design	Bangladesh Industrial Designs Act, 2023	10 years, renewable to 25
Trademark	Trademarks Act, 2009	7 years, renewable every 10
Copyright	Copyright Act, 2023	60 years after death/publication
GI	GI Goods Act, 2013	5 years, renewable
Laws Still Being Drafted:		
Trade Secret	Draft: Protection of Undisclosed Information Law	—
Utility Model	Draft: Utility Model Law	—
IC Layout	Draft: Layout Design of Integrated Circuits Law	—

Additional Protection

The **Penal Code, 1860** and the **Customs Act, 1969** also contain provisions punishing IP violations.

International Agreements Bangladesh is Party To

Agreement/Treaty	Member Since	Scope
Universal Copyright Convention	May 5, 1975	Copyright
WIPO Convention	May 11, 1985	All IP
Paris Convention	March 3, 1991	Industrial Property
GATT/TRIPS (WTO)	April 15, 1994	Comprehensive IP
Berne Convention	May 4, 1999	Literary/Artistic
Convention on Biological Diversity	—	Biodiversity

NOT a Member of:

Patent Cooperation Treaty (PCT) — Bangladesh has submitted a proposal to join, awaiting Foreign Ministry approval. PCT would allow Bangladeshi inventors to seek patent protection in multiple countries simultaneously.

The TRIPS Agreement — Deeper Look

Why TRIPS Matters for Bangladesh

- Sets **minimum standards** all WTO members must follow
- Requires: civil, criminal, and administrative **enforcement mechanisms**
- Uses WTO **dispute settlement** system
- Bangladesh must eventually align all IP laws with TRIPS

LDC Transition Period

- LDCs like Bangladesh get **extended time** to comply with TRIPS
- General TRIPS obligations: extended to **July 1, 2034**
- Pharmaceutical patents: extended to **January 1, 2033**
- This allows Bangladesh to produce **generic medicines** affordably

Source: *WTO Decision on TRIPS Extension for LDCs, June 2013 & November 2015*

How IP Rights are Enforced in Bangladesh

IP protection is governed through **three types of sanctions**:

1. Civil Remedies

- Injunctions
- Compensation/Damages
- Account of profits
- Anton Pillar Order (Search & Seize)

Filed at: District Judge Court

2. Criminal Remedies

- Imprisonment
- Fines
- Seizure of copies
- Confiscation of equipment

Filed at: Court of Sessions / Magistrate Court

3. Administrative

- Ban on imports
- Border measures
- Confiscation
- Destruction of pirated goods

Through: Registrar, Customs

Enforcement — Copyright Violations

When is Copyright Infringed?

When any person, **without a license** from the copyright owner or the Registrar, exercises the exclusive right of the copyright owner or permits any place to be used for **profit-making public communication**.

Penalties under Copyright Act, 2000:

Offense	Penalty
General copyright infringement	6 months – 4 years + Tk. 50,000 – 2,00,000
Commercial software piracy	Tk. 1,00,000 – 4,00,000 (Amended 2005)
Non-commercial/personal use	Court may impose lesser punishment

Exception — Fair Use

Using copyrighted works for **educational or research purposes** or for **knowledge generation** is NOT considered copyright violation.

Enforcement — Trademark Violations

Under Trademarks Act, 2009 (Sections 73–91):

Offense	Penalty
First offense (falsifying, counterfeiting)	Tk. 2,00,000 + up to 2 years imprisonment
Second offense	Tk. 3,00,000 + up to 3 years imprisonment

Types of trademark offenses:

- **Falsifying** trademarks
- Making, processing, or disposing of **counterfeit dies, blocks, machines**
- **Selling** goods with fake/deceptive trademarks
- Applying **false trade descriptions**

Civil Suit

No suit can be filed at any court **inferior to the Court of District Judge**. Court can order injunction, compensation, and **destruction of counterfeit goods**.

Enforcement — Patent Violations

Under Patents and Designs Act, 1911:

What Constitutes Patent Infringement?

Making, selling, or using a patented invention **without the patent owner's license** during the patent's continuance period.

Remedies Available:

- **Injunction** — court order to stop the infringing activity
- **Delivering up** of infringing products
- **Damages** — compensation for losses
- **Account of profits** — hand over profits made from infringement
- **Criminal prosecution** for certain acts of infringement

Important

A patentee files suit at **District Court**. If the defendant files a **counter-claim for revocation**, the case is transferred to the **High Court Division (HCD)**.

IP Enforcement Agencies in Bangladesh

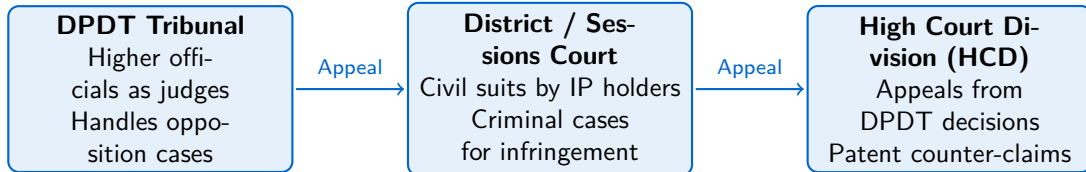
Government Agencies Involved

- ① **DPDT** — Acts as quasi-judicial tribunal; Registrar acts as judge
- ② **Copyright Office** — Handles copyright registration and disputes
- ③ **Mobile Courts** — Conduct on-the-spot enforcement drives
- ④ **Rapid Action Battalion (RAB)** — Raids on counterfeit operations
- ⑤ **Local Police** — File cases, investigate, seize infringing goods
- ⑥ **Customs Officers** — Border control for counterfeit imports

Major Issue: No Specialized IP Court

Bangladesh has **no dedicated IP enforcement court**. IP cases go through the same regular courts that handle all other cases. This causes **delays and lack of expertise** among judges.

The Tribunal System



Practical Reality

“In IP laws, if any product or thing sounds like infringement, looks like infringement, tastes or feels like infringement, then that product or thing itself is evidence of IP violation.” — WIPO Assessment

Border Measures — The Customs Challenge

How it Currently Works

- Customs officers mainly focus on **tax collection**, not IP enforcement
- They **lack adequate knowledge** about trademarks and IP
- If goods are **legally taxed**, customs cannot seize them
- Pirated goods often **reach the market** before authorities are aware

Current Process:

- ① Counterfeit goods enter the market
- ② Someone detects the violation
- ③ Report filed at **police station**
- ④ Police **investigate** the case
- ⑤ If proved, goods are **seized** and case is filed
- ⑥ Customs can act **only after police involvement**

80% of seized goods are food items. Others are kept as evidence for years.

Most Common IP Violations in Bangladesh

① **Software Piracy** (80%+ piracy rate)

- Cracked Windows, Office, Adobe products, games

② **Book Piracy**

- Unauthorized reprints of textbooks sold cheaply near universities

③ **Counterfeit Consumer Products**

- Fake brands: electronics, cosmetics, medicines, clothing

④ **Music & Film Piracy**

- Unauthorized distribution on websites, social media

⑤ **Pharmaceutical Counterfeiting**

- Fake medicines with wrong ingredients or dosages

⑥ **Trademark Infringement**

- Imitation brands (“Adibas”, “Nikee”, “Sumsung”)

Case Study 1: Software Piracy Impact

The Problem

- Bangladesh has one of the **highest software piracy rates globally**
- BSA estimates: **84% of software used is unlicensed**
- Annual commercial value of pirated software: **hundreds of millions USD**
- “The software market is hugely hampered by piracy due to lack of effective optical disc regulation” — WIPO

Why People Pirate

- High cost of original software
- Low awareness of IP rights
- Weak enforcement
- Cultural normalization

Impact

- Discourages foreign investment
- Hurts local software industry
- Security risks (malware in cracked software)
- Limits Bangladesh's IT export growth

Case Study 2: Fake Medicine — A Life-or-Death Issue

Global Context

- WHO estimates **1 in 10 medicines** in developing countries is fake
- Counterfeit medicines kill **hundreds of thousands** annually
- Common fakes: antibiotics, painkillers, anti-malaria drugs

Bangladesh Context

- Bangladesh has a strong **generic pharmaceutical industry**
- But counterfeit/substandard medicines still circulate
- Trademark protection of drug brand names is critical
- Patent waiver (TRIPS LDC exception) allows **affordable generic production**

Discussion Point

How should Bangladesh balance protecting IP for pharmaceutical companies while ensuring **affordable medicine** for its citizens?

Case Study 3: International — Gucci vs. Guess (2012)

What Happened?

- **Gucci** sued **Guess** for using a **similar interlocking G logo**
- Gucci claimed: trademark infringement, trade dress dilution
- Court ruled: Guess's use of the logo was **"likely to cause confusion"**
- Guess was ordered to stop using certain designs

Lessons

- Even **similar-looking designs** can infringe
- "Likelihood of confusion" is the legal test
- Brand protection is a **continuous effort**

Case Study 4: Nilkhet Book Market — Academic Piracy

The Reality

- Nilkhet (Dhaka) is famous for selling **pirated textbooks** at low prices
- International editions of engineering, medical, and business books available at **1/10th the original price**
- Publishers and authors lose significant revenue
- Students benefit from affordable access but it's **copyright infringement**

The Dilemma

A \$150 textbook is unaffordable for most Bangladeshi students. The pirated copy costs Tk. 200–500. Should the law be strictly enforced?

Alternatives

- Open Educational Resources (OER)
- Publisher discounts for LDCs
- Library licensing programs
- Creative Commons licensing

Major Challenges — Why IP Enforcement Fails in Bangladesh

- ❶ **Outdated laws:** Patents Act is from **1911** — over 100 years old
- ❷ **No dedicated IP courts:** Regular judges handle IP cases without special training
- ❸ **Lack of awareness:** Most people don't know what IP rights are
- ❹ **Understaffed offices:** DPDT has only 2/10 patent examiners filled
- ❺ **Manual processes:** No electronic filing, slow communication
- ❻ **Huge backlog:** 7,000+ patent applications pending
- ❼ **Weak customs enforcement:** Officers lack IP training
- ❽ **Lengthy court proceedings:** Cases take years to resolve
- ❾ **Affordability problem:** Original products too expensive for many
- ❿ **No collective management organizations** for copyright

Awareness Gap — The Root Problem

From the WIPO Assessment

“The general level of IP awareness in the country is feeble, but it is improving gradually — especially in the business sector. General citizens hardly know anything about IP.”

Who lacks awareness?

- **Copyright stakeholders:** Writers, publishers, artists, authors
- **Political representatives** and civil servants
- **Law enforcement:** Police, judges, customs officers
- **General public:** Common citizens
- **Students:** Future creators and consumers of IP

Current Efforts

On **World IP Day** (April 26), the slogan “Nokol ponyo borjon korun” (Discard counterfeited products) is promoted. Cultural personalities participate. But these programs “have little effect on the public” due to their **limited scale**.

Recommendations for Stronger IP in Bangladesh

- 1 **Pass new laws:** Separate acts for designs, trade secrets, GI, utility models, IC layouts
- 2 **Establish IP Courts:** Specialized judges trained in IP law
- 3 **Merge offices:** Create a unified “**IP Office of Bangladesh**” (BIPO)
- 4 **Digitize everything:** Online filing, searchable patent databases
- 5 **Hire and train:** More examiners, training for police, judges, customs
- 6 **Build awareness:** Include IP in university curricula, mass media campaigns
- 7 **Public-Private Partnership:** Industry + government collaboration
- 8 **Fast-track dispute resolution:** Simpler, cheaper, faster IP litigation
- 9 **Join PCT:** Allow Bangladeshi inventors to file international patents
- 10 **Protect traditional knowledge:** Legal framework for folklore and indigenous innovations

Source: Ahmed (2016), WIPO Assessment (2013)

Bangladesh's TRIPS Compliance Steps

Recent government initiatives:

- 1 **Copyright Act, 2000** replaced the 1962 Ordinance; amended in 2005 (expanded software protection, higher penalties)
- 2 **DPDT established** (2003) by merging Patent Office and Trademark Registry
- 3 **Trademarks Act, 2009** with modernized provisions
- 4 **GI Act, 2013** to protect regional products
- 5 **Draft laws** in progress: Patents, Designs, Trade Secrets, Utility Models, IC Layouts
- 6 **WIPO software** being adapted for computerizing DPDT operations
- 7 Enhanced staffing at DPDT and Copyright Office

The Big Picture

Bangladesh is making progress but faces the challenge of modernizing a system **inherited from British colonial era** while balancing the needs of a **developing economy** with international obligations.

Key Takeaways

- 1 Bangladesh has **multiple IP laws** but some are outdated (Patents Act 1911!)
- 2 Enforcement happens through **civil, criminal, and administrative** remedies
- 3 Key agencies: **DPDT, Copyright Office, Police, RAB, Customs, Mobile Courts**
- 4 **No specialized IP court** exists — a major weakness
- 5 Common violations: **software piracy, book piracy, counterfeit goods, fake medicine**
- 6 Root cause: **lack of awareness + affordability issues**
- 7 Bangladesh is an **LDC** with extended TRIPS transition period (until 2034)
- 8 Significant reforms are needed: new laws, digital systems, IP courts, training

Next Class Preview

Technology, AI & Modern IP Issues: How do AI tools like ChatGPT, deepfakes, NFTs, and social media challenge traditional IP law? What does the future look like?

Is piracy always wrong?

Consider this scenario:

- A medical student in Dhaka needs a \$200 anatomy textbook
- Their family income is Tk. 25,000/month
- A pirated copy is available for Tk. 300 at Nilkhet
- The library has 2 copies for 500 students

Strict IP View:

Piracy is theft. No exceptions. Find alternatives (scholarship, library).

Development View:

Access to knowledge should not depend on wealth. LDC exceptions exist for a reason.

What's your position? Be ready to argue both sides.

References

- Ahmed, A. (2016), “Enforcement of IPRs in Bangladesh: An Appraisal”, IOSR-JHSS, Vol. 21, Issue 4
- Khondker, B.H. & Nowshin, S. (2013), “Developing National IP Policy for Bangladesh”, WIPO
- Copyright Act, 2000 (Act No. XXVIII of 2000), Bangladesh
- Trademarks Act, 2009, Bangladesh
- Patents and Designs Act, 1911, Bangladesh
- Customs Act, 1969, Bangladesh
- Penal Code, 1860, Bangladesh
- BSA Global Software Survey, <https://www.bsa.org>
- TRIPS Agreement, WTO, 1994
- Karzon & Mehtab (2010), “IPR Enforcement in Bangladesh”, DU Studies
- FM Associates, “IP Law in Bangladesh”